

the United States” This grant of authority establishes the President as the chief constitutional officer of the Executive Branch, entrusted with supervisory and policy responsibilities of utmost discretion and sensitivity. These include the enforcement of federal law—it is the President who is charged constitutionally to “take Care that the Laws be faithfully executed”;²⁸ the conduct of foreign affairs—a realm in which the Court has recognized that “[i]t would be intolerable that courts, without the relevant information, should review and perhaps nullify actions of the Executive taken on information properly held secret”;²⁹ and management of the Executive Branch—a task for which “imperative reasons requir[e] an unrestricted power [in the President] to remove the most important of his subordinates in their most important duties.”³⁰

In arguing that the President is entitled only to qualified immunity, the respondent relies on cases in which we have recognized immunity of this scope for governors and cabinet officers. *E. g.*, *Butz v. Economou*, 438 U. S. 478 (1978); *Scheuer v. Rhodes*, 416 U. S. 232 (1974). We find these cases to be inapposite. The President’s unique status under the Constitution distinguishes him from other executive officials.³¹

²⁸ U. S. Const., Art. II, § 3.

²⁹ *Chicago & Southern Air Lines, Inc. v. Waterman S.S. Corp.*, 333 U. S. 103, 111 (1948).

³⁰ *Myers v. United States*, 272 U. S. 52, 134–135 (1926).

³¹ Noting that the Speech and Debate Clause provides a textual basis for congressional immunity, respondent argues that the Framers must be assumed to have rejected any similar grant of executive immunity. This argument is unpersuasive. First, a specific textual basis has not been considered a prerequisite to the recognition of immunity. No provision expressly confers judicial immunity. Yet the immunity of judges is well settled. See, *e. g.*, *Bradley v. Fisher*, 13 Wall. 335 (1872); *Stump v. Sparkman*, 435 U. S. 349 (1978). Second, this Court already has established that absolute immunity may be extended to certain officials of the Executive Branch. *Butz v. Economou*, 438 U. S., at 511–512; see *Imbler v. Pachtman*, 424 U. S. 409 (1976) (extending immunity to prosecutorial